

enables a feme covert to waive her equity to a settlement, the husband and wife together can deal with such *choses en action* by making it imperative on the trustees to transfer the fund to the husband or his nominee.

6. Choses en action, &c. irrespectively of the Act.—The husband alone may create a trust of the wife's *choses en action sub modo*; that is, if they be reduced into possession during the coverture, the settlement will be unimpeachable, but if they remain *choses en action* at the death of the husband, the wife will be entitled to them by survivorship.

Chattels real.—As to the wife's equitable chattels real, the husband may, subject to the wife's equity to a settlement (a), create a trust of them *jure mariti* (b), unless the chattel be of such a nature that it cannot possibly fall into possession during the coverture (c).

[**7. Recent alterations.**—The above observations apply only to property which was acquired before the 1st of January, 1883, by women married before that date; as in all other cases the property vests in the wife, independently of her husband, and she has power to dispose or create a trust of it without his concurrence (d).]

8. Separate use.—As regards property settled to the *separate use* of a feme covert, she is to all intents and purposes considered a *feme sole*,¹ as, if real estate be conveyed to a trustee and his heirs, or if personal estate be assigned to a trustee and his executors upon trust for the feme covert for her sole and separate use, and to be at her sole disposal as to the fee-simple in the one case and the absolute interest in the other, she has the entire control, and may exercise her ownership or implied power of appointment by creating a trust, extending even beyond the coverture. So if the feme covert be tenant for life to her separate use, she has full power to make a settlement of her whole life estate, and not

(a) *Hanson v. Keating*, 4 Hare, 1.

(c) *Duberly v. Day*, 16 Beav. 33.

(b) *Donne v. Hart*, 2 R. & My. 360.

[(d) 45 & 46 Vic. c. 75.]

¹ *Hill on Trustees*, 421; 2 *Perry on Trusts*, Chap. XXII. on Trustees for Married Women, gives an abstract of laws in the various states relating to them. May dispose of property by will; *Mory v. Michael*, 18 Md. 227; may dispose of allowance, or savings from trust income; *Story, Eq. Jur.* § 1375; *Picquet v. Swan*, 4 *Mason*, 455. But see *Story, Eq. Jur.* § 1375 a.